

PHIL 1001 ETHICS FOR THE DIGITAL AGE
 An Introduction to Moral Philosophy



Week 06a, Deontology II:

Respect for Persons

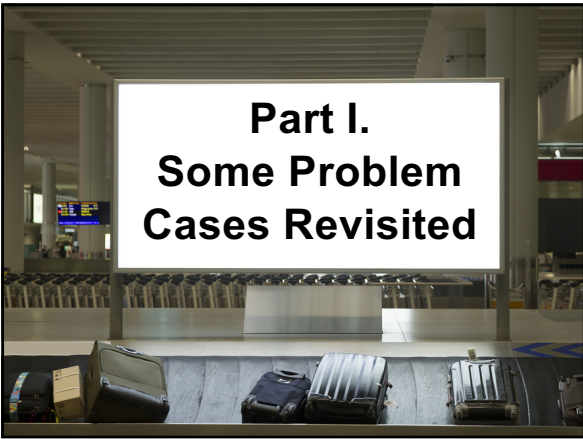
Humanity as an End in Itself

1

Agenda

- I. Some Problem Cases Revisited
- II. Kant's Formula of Humanity
- III. FH applied (part I).
- IV. FH applied (part II).
- V. Why accept the Formula of Humanity?

2



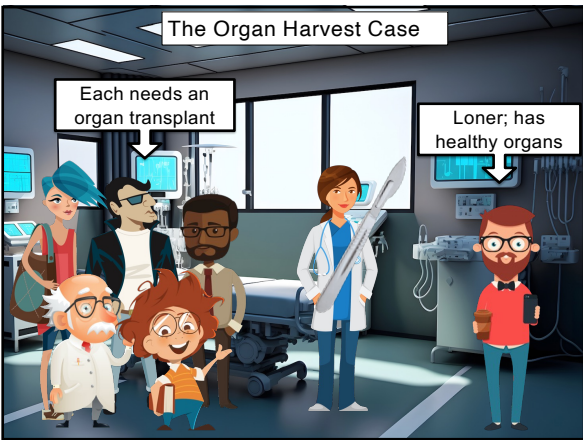
Part I. Some Problem Cases Revisited

3

Motivating The Formula of Humanity:

Cases that gave AU some trouble.

4



The Organ Harvest Case

Each needs an organ transplant

Loner; has healthy organs

5



Punish-the-innocent Case

I'm innocent!

6

Question:

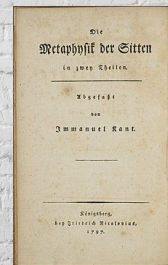
Why is it wrong to kill the one to save more in these examples?

Plausible answer:

"inherent value"
^

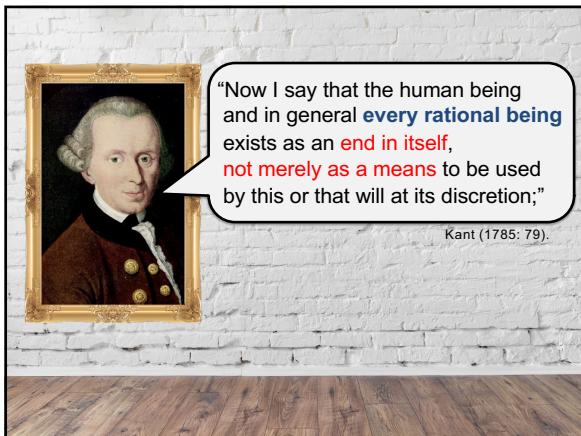
- Persons have a **special kind of value**.
- Because of this value, **there are limits** on what one may rightly do to a person...
...even if it brings about a "greater benefit".
- i.e. persons are "**inviolable**".

7

Immanuel Kant (1724-1804)

Groundwork for the Metaphysics of Morals (1785)

8



"Now I say that the human being and in general **every rational being** exists as an **end in itself**, **not merely as a means** to be used by this or that will at its discretion;"

Kant (1785: 79).

9

Part II. Kant's Formula of Humanity

10

Kant's Second formulation of the Categorical Imperative:

The Formula of Humanity*

* Onora O'Neill calls it "The Formula of the End in Itself"

11

The Formula of Humanity

i.e. the capacity for rational deliberation
^

"...act that you use humanity, whether in your own person or in the person of any other, always at the same time as an end, never merely as a means."

Kant p. 80

12

<Kant's principle stated more formally as a theory of morally right action.>

FH: an act-token, x, is morally right if and only if

- (i) in performing x, the agent does not treat any person as a mere means to an end, and
- (ii) x is consistent with treating all persons as ends in themselves.

13

How is FH supposed to be related to FUL?
Are they complementary principles that you are supposed to apply jointly?

< Kant didn't think they were complementary; he thought they were "equivalent".
For our class I am going to treat them as two independent (and potentially competing) theories of morally right action.>

14

Part III. FH Applied: Treating as Mere Means

15

Those examples
that gave trouble
for utilitarianism

16

The Organ Harvest Case

Is used as a
mere means
to save the five

17

Punish-the-innocent Case

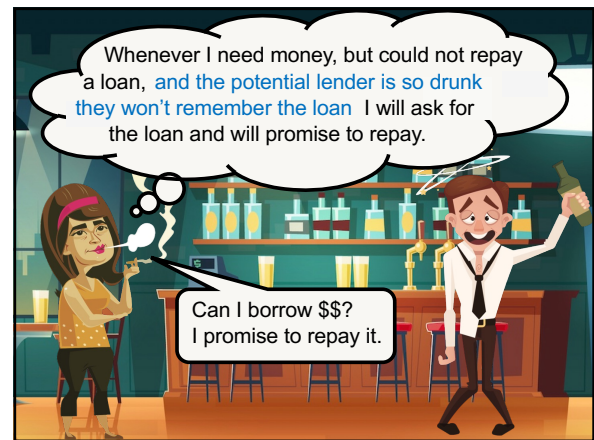
Is used as a
mere means
to stop the riot

18

An example that gave trouble for Kant's FUL:

The *Careful* Lying Promiser

19



20



21

What is involved in
“treating someone
as a mere means”?

23



24



25



26

A Problem for the Actual-Consent Account of Not Treating as a Mere Means?*

* Compare with Onora O'Neill (1985: 255-256).

27

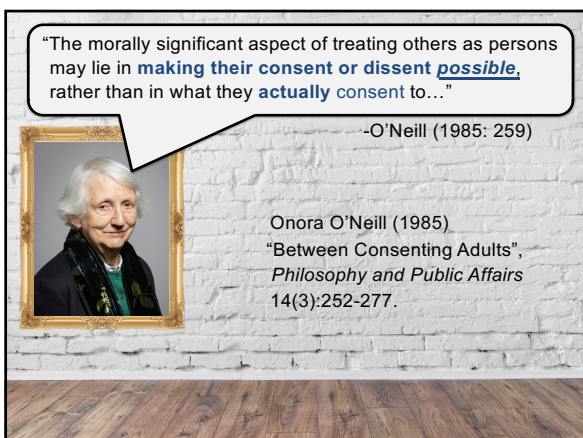


28

A Better Account of Not Treating as a Mere Means?

Onora O'Neill's
"Possible Consent" Account

29



30

Two Problems for the Possible Consent Account?

31

Problem 1: CPR on an Unconscious Person.

Samuel Kerstein (2009) "Treating Others Merely as Means",
Utilitas 21(2): 163-180, p. 173f.



- They cannot give their consent to receive CPR.
- Agent cannot do anything to make their consent to the CPR possible.
- Yet, intuitively, giving them CPR **should not** count as treating them as a mere means.

32

Problem 2: The Possible Consent Account Seems Not to Have Been *Kant's Own View*:

- Kant thought that people sometimes treat **themselves** as a mere means (and that doing so is wrong).
- But it is hard to imagine how a person can do things *to themselves* that they do not (or cannot) consent to.

33



34

<To Refresh Our Memory With What FH Says.>

FH: an act-token, x, is morally right if and only if

- (i) in performing x, the agent does not treat any person as a mere means to an end,
- and
- (ii) x is consistent with treating all persons as ends in themselves.

35

The Uncharitableness Example

36



37

"Now, humanity might indeed subsist if no one contributed to the happiness of others but yet did not intentionally withdraw anything from it;

but there is still only a **negative** and not a **positive agreement with humanity as an end in itself** unless everyone also tries, as far as he can, to further the ends of others.

For the ends of a subject who is an end in itself must as far as possible be also **my** ends, if that representation [of humanity as an end in itself] is to have its full effect on me."

Kant (1785: 80)

38



39

Why accept FH?

Reason 1: It seems to explain our judgments about cases better than other theories.

Reason 2: Explains/highlights the moral importance of consent.

Reason 3: Kant's own argument in favour of FH...

40

Kant's argument for FH

- Contained in the first paragraph of Kant (1785: 79).
- I will take Kant's ideas in a different order from the text.
- My interpretation follows Fred Feldman (1978) *Introductory Ethics* (Prentice Hall).

41

"Without it [i.e. ends in themselves] nothing of absolute worth would be found anywhere;

"but if all worth were conditional and therefore contingent, then no supreme practical principle for reason could be found anywhere."

Kant 1785: 79.

(P2) If nothing is an end in itself, then there is never any reason to act one way rather than in another.

42

(P1) Either persons are ends in themselves, or nothing is an end in itself.

(P2) If nothing is an end in itself, then there is never any reason to act one way rather than in another.

(P3) There is sometimes a reason to act in one way rather than in another.

(C) Persons are ends in themselves.

44

(P1) Either persons are ends in themselves, or nothing is an end in itself.

Four candidates for an end in itself:

- ☐ (i) Objects of our inclinations.
- ☐ (ii) Our inclinations themselves.
- ☐ (iii) Non-rational beings.
- ☐ (iv) Rational beings (persons).

<Note: "inclinations" are things like desires, urges, and cravings.>

45



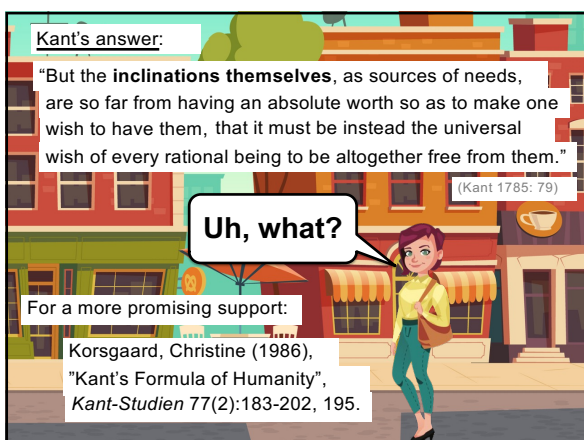
46



47



48



49



50



51



52

(P1) Either persons are ends in themselves, or nothing is an end in itself.

Four candidates for an end in itself:

- ☒ (i) Objects of our inclinations.
- ☒ (ii) Our inclinations themselves.
- ☒ (iii) Non-rational beings.
- ☒ (iv) Rational beings (persons).

53

(P1) Either persons are ends in themselves, or nothing is an end in itself.

(P2) If nothing is an end in itself, then there is never any reason to act one way rather than in another.

(P3) There is sometimes a reason to act in one way rather than in another.

(C) Persons are ends in themselves.

54



55